AREA PLAN COMMISSION OF TIPPECANOE COUNTY
EXECUTIVE COMMITTEE
MINUTES OF A PUBLIC HEARING

DATE..... MAY 3, 2017
TIME..... 4:30 P.M.
PLACE.....CO. OFFICE BLDG.
20 N. 3rd STREET
LAFAYETTE, IN 47901

MEMBERS PRESENT	MEMBERS ABSENT	STAFF PRESENT
Gerry Keen	Jackson Bogan	Sallie Fahey
Jerry Reynolds	Greg Jones	Ryan O'Gara
Gary Schroeder		Kathy Lind
Tom Murtaugh		Linda Underwood
Carl Griffin		Jay Seeger, Atty.

President Gerry Keen called the meeting to order.

I. APPROVAL OF MINUTES

Carl Griffin moved to approve the minutes from the April 5, 2017 Executive Committee public hearing as submitted. Jerry Reynolds seconded and the motion carried by voice vote.

II. NEW BUSINESS

FINAL DETAILED PLANS

1. RESOLUTION PD 17-03--JERRY M. WEIDA AND PATTI A. WEIDA (302 Vine Street PD) Z-2641:
Final Detailed Plans for the 302 Vine Street Planned Development: the approved preliminary plans allow for the construction of a 5-story, mixed-use building that contains a maximum of 73 units with 117 bedrooms, 12,580 square feet of ground floor retail, and a 74-space parking structure. The property is bounded by North Street, Vine Street, Wiggins Avenue and Northwestern Avenue, West Lafayette, Wabash 19 (NE) 23-4.

Carl Griffin moved to hear and approve **RESOLUTION PD 17-03—JERRY M. WEIDA AND PATTI A. WEIDA (302 Vine Street PD) Z-2641**. Tom Murtaugh seconded.

Gary Schroeder joined the meeting in progress.

Ryan O'Gara presented the zoning map and site plan. He said this site was rezoned by the City of West Lafayette in July 2016 after a unanimous recommendation of approval from APC. The Final Detailed Plans consist of the Construction Plans and Final Plat and meet all conditions required at this stage of

development. If these plans are approved and recorded the owner will be able to apply for permits and begin construction.

Roger Fine, 625 South Earl Avenue, Lafayette, IN 47904, surveyor representing the petitioners, said he and the petitioner are present tonight to answer any questions. He requested approval.

The Committee voted by ballot 5 yes to 0 no to approve **RESOLUTION PD 17-03—JERRY M. WEIDA AND PATTI A. WEIDA (302 Vine Street PD) Z-2641.**

2. RESOLUTION PD-17-04--538, LLC (Historic Peirce House PD) Z-2677
Final Detailed Plans for the Historic Peirce House Planned Development: the approved preliminary plans allow for the conversion of an existing single-family building into a multi-family building with a maximum of 6 units. The property is located at 538 S. 7th Street, Lafayette, Fairfield 23 (NW) 23-4.

Gary Schroeder moved to hear and approve **RESOLUTION PD 17-04—538, LLC (Historic Pierce House PD) Z-2677**. Carl Griffin seconded.

Ryan O'Gara presented the site plan and said the entire PD is within the existing mansion. There is an option for the owner to add additional garage spaces at a later date. He said the City of Lafayette rezoned this site in February 2017. These Final Detailed Plans meet all conditions required at this stage. Once these Final Detailed Plans are approved and recorded the owner will be clear to apply for permits and begin construction.

Glen Vick, 538 South 7th Street, Lafayette, IN 47905, petitioner, said he is available to answer any questions and requested approval.

The Committee voted by ballot 5 yes to 0 no to approve **RESOLUTION PD 17-04—538, LLC (Historic Pierce House PD) Z-2677.**

3. RESOLUTION PD 17-05--INDIANA DISTRICT OF THE LUTHERAN CHURCH, MISSOURI SYNOD, INC. (460 Northwestern PD) Z-2675
Final Detailed Plans for 460 Northwestern Planned Development: the approved preliminary plans allow for the conversion of the existing Exponent building for a church use, office use and limited commercial retail use. The property is located at 460 Northwestern Ave., West Lafayette, Wabash 19 (NE) 23-4.

Gary Schroeder moved to hear and approve **RESOLUTION PD 17-05—INDIANA DISTRICT OF THE LUTHERAN CHURCH, MISSOURI SYNOD, INC. (460 NORTHWESTERN PD) Z-2675**. Carl Griffin seconded.

Ryan O'Gara presented the site plan and said this PD is another adaptive reuse of an existing building. He said the replatting will clean up the 1987 Exponent PD. The City of West Lafayette voted to rezone this site in February 2017. These Final Detailed Plans, consisting of the construction plans and final plat meet all conditions required at this stage. Once these Final Detailed Plans are approved and recorded the owner will be able to apply for permits and begin construction.

Daniel Teder, PO Box 280, Lafayette, IN 47902, said the church sold its previous location on Chauncey and plans to relocate to this site. The plan is to be ready before the fall semester begins in August.

The Committee voted by ballot 5 yes to 0 no to approve **RESOLUTION PD 17-05—INDIANA DISTRICT OF THE LUTHERAN CHURCH, MISSOURI SYNOD, INC. (460 NORTHWESTERN PD) Z-2675.**

III. PUBLIC HEARING

Gary Schroeder moved that the Comprehensive Plan for Tippecanoe County, the Unified Zoning Ordinance of Tippecanoe County, and the Unified Subdivision Ordinance for Tippecanoe County, Indiana are hereby entered by reference into the record of each agenda item. Carl Griffin seconded and the motion carried by voice vote.

Gerry Keen read the meeting procedures.

A. SUBDIVISIONS

S-4670--ROHRMAN NORTH SUBDIVISION (minor-sketch):
Petitioners are seeking primary approval to replat two Winding Creek lots (Lots 297 & 298) into one lot on 1.985 acres, located on the west side of CR 75 E, just south of Appaloosa Trail, in Tippecanoe 29 (NE) 24-4.

Gary Schroeder moved to hear and vote on **S-4670—ROHRMAN NORTH SUBDIVISION (minor-sketch).** Carl Griffin seconded.

Kathy Lind presented the zoning map, aerial photos and sketch plan. She referred to the zoning map to highlight the R1 and R1B going through both lots. The R1 zone is stricter and its requirements will apply to all of the proposed new lot. She highlighted the area zoning and land use patterns. Both lots have sanitary sewer but no water service and the construction plans for this section of Winding Creek require these two lots be serviced by grinder pumps with an individual force main for each lot. The Drainage Board has already approved drainage for the site. Because the southwesterly lot is within 100' of the Flood Plain the lowest floor or crawl space must be 2' higher than the Flood Plain Elevation. She summarized the remainder of the staff report and concluded with a recommendation of approval, contingent on the following conditions:

FINAL PLAT – The following items shall be part of the Secondary Application and Final Plat approval:

1. All existing easements, covenants or restrictions shall be shown and referenced with the corresponding recording information (Document Number and date recorded).
2. All required building setbacks shall be platted.
3. The street addresses and County Auditor's Key Number shall be shown.
4. The note on the sketch plan regarding the sanitary sewer requirement shall be platted.
5. The note on the sketch plan regarding the Flood Plain regulations shall be platted.

Robert Gross, 420 Columbia Street, Suite 100, Lafayette, IN 47901, surveyor representing the petitioner, concurred with the staff report, agreed to the conditions and requested approval.

The Committee voted by ballot 5 yes to 0 no to grant conditional primary approval for **S-4670—ROHRMAN NORTH SUBDIVISION (minor-sketch).**

IV. APPROVAL OF THE MAY AREA PLAN COMMISSION PUBLIC HEARING AGENDA:

Gary Schroeder moved that the following *USO Amendment* be placed on the May 17, 2017 Area Plan Commission public hearing agenda:
***USO* AMENDMENT #10**

Carl Griffin seconded and the motion carried by voice vote.

Gary Schroeder moved that the following subdivision petitions be placed on the May 17, 2017 Area Plan Commission public hearing agenda at petitioners' request, placement thereon being without reference to compliance or non-compliance with the adopted subdivision ordinance:
S-4671—DUNKIN SUBDIVISION (minor-sketch) and
S-4672—AVALON BLUFF SUBDIVISION, SECTION 3 (major-preliminary)

Carl Griffin seconded and the motion carried by voice vote.

Gary Schroeder moved that the following rezoning petitions be placed on the May 17, 2017 Area Plan Commission public hearing agenda:
Z-2688—HABITAT FOR HUMANITY OF LAFAYETTE, INC. (R1 to R1B),
Z-2689—BROWNSTONE DEVELOPMENT, LLC (NBU to CB),
Z-2690—ED-AN PROPERTIES, INC. (NB to GB), and
Z-2691—SAGAMORE COMMONS, LLC (OR to GB)

Carl Griffin seconded and the motion carried by voice vote.

V. APPROVAL OF THE MAY ABZA PUBLIC HEARING AGENDA

Gary Schroeder moved that the following petition be placed on the May 24, 2017 Area Board of Zoning Appeals Public Hearing agenda:
BZA-1960 CARMOSINO GROUP, INC./ BLAIR CARMOSINO

Carl Griffin seconded and the motion carried by voice vote.

VI. DETERMINATION OF VARIANCES – Lafayette Division

Gary Schroeder moved that the following request for variance from the Unified Zoning Ordinance is not a request for use variance, prohibited from consideration by ordinance and statute:
CASE #2017-14—MARSHALLS / SignCraft Industries

Carl Griffin seconded and the motion carried by voice vote.

Gary Schroeder moved that in the following case the sign ordinance be strictly adhered to:
CASE #2017-14—MARSHALLS / SignCraft Industries

Carl Griffin seconded and the motion carried by voice vote.

VII. REVIEW AND APPROVAL OF THE APRIL BUDGET REPORT

Sallie Fahey said April was a light month and there were no expenditures of note to report on.

Gary Schroeder moved to approve the April budget report as submitted. Carl Griffin seconded and the motion carried by voice vote.

VIII. OTHER BUSINESS

None

IX. ADJOURNMENT

Gary Schroeder moved to adjourn. Carl Griffin seconded and the motion carried by voice vote.

The meeting adjourned at 4:45p.m.

Respectfully submitted,

Linda Underwood
Recording Secretary

Reviewed by,

Sallie Dell Fahey
Executive Director